

Exhibit II: Whistleblower Protection Policy

Companion document to the BCOC Bylaws 2026 Amendment Package

Status: Proposed 2026 · **Vote required:** Yes (Agree / Do Not Agree / Agree with Suggested Edits)

This exhibit is incorporated by reference into Article XII, Section 1 of the BCOC Bylaws.

Whistleblower Protection Policy

Subject: Whistleblower Protection Policy

Objective: To provide a clear process for reporting suspected misconduct and to protect good-faith reporters from retaliation.

Purpose: The purpose of this Policy is to encourage the prompt reporting of suspected violations of law, financial impropriety, misuse of organizational assets, fraud, ethical breaches, policy violations, or other improper conduct affecting the Black Chief Officers Committee (BCOC), while protecting persons who make good-faith reports from retaliation.

Section 1. Scope and Applicability

This Policy applies to Executive Board members, officers, appointed officials, committee members, employees, contractors, volunteers, members acting in an official capacity, and any other person acting on behalf of the BCOC.

Section 2. Reportable Concerns

Reportable concerns include, but are not limited to, suspected fraud, embezzlement, theft, falsification of records, financial mismanagement, misuse of BCOC funds or property, conflicts of interest, violations of the Bylaws, harassment or discrimination connected to BCOC operations, retaliation, or any conduct reasonably believed to be unlawful or unethical.

Section 3. Good-Faith Reporting

A report is made in good faith when the reporting person reasonably believes that the information disclosed indicates improper conduct, even if an investigation later determines that no violation occurred. A person who knowingly makes a false report or acts with malicious intent may be subject to appropriate corrective action.

Section 4. Reporting Procedure

Concerns should be reported as soon as practicable to the Chairperson, Vice Chairperson, Recording Secretary, or other officer designated by the Executive Board. If the concern involves the Chairperson, it should be reported to the Vice Chairperson or another disinterested member of the Executive Board. If the concern involves multiple officers or the entire Executive Board, the matter may be referred to

independent legal counsel, an external investigator, or a special committee authorized by the Executive Board or membership, as appropriate.

Section 5. Confidentiality

Reports shall be handled as confidentially as reasonably possible, consistent with the need to conduct a fair review, protect due process, comply with legal obligations, and take corrective action where warranted.

Section 6. Non-Retaliation

No person covered by this Policy who makes a good-faith report, participates in an inquiry, or assists in an investigation shall be subject to retaliation, intimidation, harassment, adverse treatment, or other reprisal because of that protected activity. Any retaliation or attempted retaliation shall itself constitute a violation of this Policy.

Section 7. Review and Investigation

The Executive Board, or a disinterested committee, officer, or outside investigator designated for that purpose, shall review reports received under this Policy and determine what inquiry, investigation, interim safeguards, or corrective action is appropriate. Any person who is the subject of a report shall be excluded from decision-making regarding the review of that matter except to the extent necessary to provide information or respond to allegations.

Section 8. Corrective Action

If a report is substantiated, the BCOC may take such corrective action as it deems appropriate under the circumstances, including policy changes, internal controls, training, removal from appointed duties, recommendation of removal from elected office, referral to law enforcement, or other remedial action consistent with the Bylaws and applicable law.

Section 9. Recordkeeping

Reports and related investigative materials shall be documented and maintained in a secure manner by the Recording Secretary or other designated custodian, subject to any confidentiality restrictions, legal holds, or privilege considerations.

Section 10. Review and Updates

The Executive Board may review and administratively update this Policy from time to time to reflect legal developments and governance best practices, provided such updates do not conflict with the Bylaws.

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